

**BEFORE THE
FEDERAL MARITIME COMMISSION**

TOYOTA DE PUERTO RICO CORP.,

Complainant,

v.

**PUERTO RICO PORTS AUTHORITY,
CROWLEY PUERTO RICO SERVICES
INC., and OCEANIC GENERAL AGENCY
INC.,**

Respondent.

Docket No. 19-02

**SECTION 11 OF THE SHIPPING
ACT OF 1984**

MOTION FOR EXTENSION OF TIME TO FILE RESPONSE TO THE COMPLAINT

**TO MS. RACHEL E. DICKON
SECRETARY, FEDERAL MARITIME COMMISSION**

COMES NOW respondent **Puerto Rico Ports Authority** (hereinafter the "PRPA"), through its undersigned counsel, and respectfully states and requests as follows:

Pursuant to Federal Maritime Commission Rules of Practice and Procedure 69 and 102 (46 C.F.R. §§ 502.69 and 502.102), PRPA very respectfully requests a fourteen (14) day extension of time to file its response to Toyota de Puerto Rico Corp.'s Verified Complaint, pursuant to Rules 62(b), 69(g) and/or 70 (46 C.F.R. §§ 502.62(b), 502.69(g) and/or 502.70). In support of its request, PRPA very respectfully states as follows:

1. The undersigned counsel was recently engaged to represent the PRPA in this case and is currently in the process of investigating the factual and legal contentions contained in the Verified Complaint. That said, the issues and facts alleged are complexed and require that PRPA investigate what Enhanced Security Fees ("ESF"), *if any*, were ever charged to Toyota PR by PRPA or with the co-respondents Crowley Puerto Rico Services Inc. ("Crowley") and Oceanic General Agency Inc. ("Oceanic").

2. PRPA adds that these and/or similar issues are currently being litigated in a complex *putative class action* case before the United States District Court of Puerto Rico and the United States Court of Appeals for the First Circuit. That case is titled *Dantzler, Inc., et. al., v. Puerto Rico Ports Authority, et. al.*, Civil No. 17-1447 (FAB)(USDC), and 18-2087 and 18-2089 (First Circuit). Further, it is also being litigated before the Puerto Rico Supreme Court, which recently granted *Certiorari* review in Civil Case No. CC-2018-600. PRPA's point is that the facts and allegations contained in the Verified Complaint are complexed and require careful analysis prior to responding.

3. Considering the aforementioned, PRPA very respectfully requests a fourteen (14) day additional term for its attorney to investigate the pertinent facts and issues of law related to this case, in order to be able to properly answer the Complaint or otherwise move or defend.

4. This request for additional time would not cause any undue prejudice or delay, and it is being made in good faith. Further, pursuant to Rule 71(a) (46 C.F.R. §§ 502.71(a)) the undersigned conferred with counsel for Toyota, Crowley and Oceanic today, and sought their consent to an extension of time to respond. All kindly granted the same. In particular, Rafael Escalera, Esq., counsel for Toyota was amenable to a request for a fourteen (14) day extension of time. If granted, said term would expire on Thursday, March 14th. During said term, PRPA will also explore settlement options.

5. Given the parties' consent and that this is PRPA's first appearance in this matter, the undersigned asks that the Federal Maritime Commission excuse PRPA from complying with Rule 102(a)'s (46 C.F.R. §§ 502.102(a)) seven (7) day term for filing of motions seeking additional time.

WHEREFORE, PRPA very respectfully requests that the Commission grant it a fourteen (14) day extension of time (expiring on Thursday, March 14th) to answer, plead, or otherwise defend against the Verified Complaint and/or grant any other term and/or relief which it deems proper.

Certificate of Service: I hereby certify that on this same date the foregoing notice was served upon the following attorneys and participants of record: (a) counsel for **Toyota de Puerto Rico Corp.** - Rafael Escalera Rodriguez, Esq. (escalera@reichardescalera.com), Sylvia M. Arizmendi, Esq. (arizmendis@reichardescalera.com), Alan M. Viscarrondo Santana, Esq. (viscarrondo@reichardescalera.com), Zarel J. Soto Acaba, Esq. (zsoto@reichardescalera.com); (b) counsel for **Crowley Puerto Rico Services, Inc.** – Marc J. Fink, Esq. (mfink@cozen.com), Wayne R. Rohde, Esq. (wrohde@cozen.com) and Matthew Howell, Esq. (mhowell@cozen.com); and (c) counsel for **Oceanic General Agency Inc.** – Henry P. Gonzalez (gonzalez@gdvlegal.com) and Jose E. Alfaro Delgado (josealfaro@yahoo.com).

RESPECTFULLY SUBMITTED.

In San Juan, Puerto Rico, this 28th day of February, 2019.

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